

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                   |                                                                                                    |                                               |                                                       |                                          |                                 |
|-------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------|-----------------------------------------------|-------------------------------------------------------|------------------------------------------|---------------------------------|
| Investigator:<br>Gene Schildkraut                                                                                 | Team:<br>Team # 5                                                                                  | CCRB Case #:<br>200616946                     | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt.       | <input type="checkbox"/> U.S.   |
|                                                                                                                   |                                                                                                    |                                               | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L. | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 09/17/2006 12:00 AM, Monday,<br>09/18/2006 12:00 AM, Wednesday,<br>12/20/2006 4:00 PM | Location of Incident:<br>§ 87(2)(b) at the 69th Precinct<br>stationhouse, § 87(2)(b)<br>§ 87(2)(b) |                                               | 18 Mo. SOL<br>6/20/2008                               |                                          | Precinct:<br>69                 |
| Date/Time CV Reported<br>Wed, 12/20/2006 7:42 PM                                                                  | CV Reported At:<br>CCRB                                                                            | How CV Reported:<br>Call Processing<br>System | Date/Time Received at CCRB<br>Wed, 12/20/2006 7:42 PM |                                          |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)          | Shield | TaxID  | Command |
|-----------------------------|--------|--------|---------|
| 1. POM Jason Deonarinesingh | 16252  | 936469 | 069 PCT |
| 2. Officers                 |        |        | 069 PCT |
| 3. POM Troy Luis            | 04446  | 936991 | 069 PCT |
| 4. POM Antonio Arroyo       | 08685  | 934421 | 069 PCT |
| 5. POM Patrick Smith        | 29672  | 931998 | 069 PCT |

| Witness Officer(s)        | Shield No | Tax No | Cmd Name |
|---------------------------|-----------|--------|----------|
| 1. POM Christopher Doll   | 00221     | 931639 | 069 PCT  |
| 2. SGT Joann Gonzalez     | 02889     | 915819 | 069 PCT  |
| 3. POM Kristofer Allua    | 00138     | 936122 | 069 PCT  |
| 4. POM Yancy Blowe        | 07951     | 932134 | 069 PCT  |
| 5. POF Charlene Hernandez | 28738     | 936750 | 069 PCT  |

| Officer(s)             | Allegation                                                                                                                                                      | Investigator Recommendation |
|------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Troy Luis      | Abuse: On September 17, 2006, at § 87(2)(b) in Brooklyn, Officer Troy Luis searched § 87(2)(b)                                                                  | A . Exonerated              |
| B . POM Troy Luis      | Force: On September 17 and 18, 2006, at § 87(2)(b) in Brooklyn, and at the 69th Precinct stationhouse, Officer Troy Luis used physical force against § 87(2)(b) | B . Unsubstantiated         |
| C . POM Antonio Arroyo | Off. Language: On September 18, 2006, at the 69th Precinct stationhouse, Officer Antonio Arroyo made remarks to § 87(2)(b) based upon race.                     | C . Unsubstantiated         |
| D . POM Antonio Arroyo | Force: On September 18, 2006, at the 69th Precinct stationhouse, Officer Antonio Arroyo used physical force against § 87(2)(b) and § 87(2)(b)                   | D . Unsubstantiated         |

| Officer(s)                   | Allegation                                                                                                                                                 | Investigator Recommendation      |
|------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------|
| E . POM Jason Deonarinesingh | Force: On September 18, 2006, at the 69th Precinct stationhouse, Officer Jason Deonarinesingh used physical force against § 87(2)(b)                       | E . Unsubstantiated              |
| F . Officers                 | Force: On September 18, 2006, at the 69th Precinct stationhouse, officers used physical force against § 87(2)(b)                                           | F . Officer(s) Unidentified      |
| G . POM Patrick Smith        | Off. Language: On September 18, 2006, at the 69th Precinct stationhouse, Officer Patrick Smith made remarks to § 87(2)(b) based upon race.                 | G . Unsubstantiated              |
| H . POM Patrick Smith        | Force: On September 18, 2006, at the 69th Precinct stationhouse, Officer Patrick Smith used physical force against § 87(2)(b)                              | H . Unsubstantiated              |
| I . POM Patrick Smith        | Force: On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Patrick Smith used physical force against § 87(2)(b)        | I . Alleged Victim Uncooperative |
| J . POM Jason Deonarinesingh | Abuse: On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh drew his gun.                          | J . Unsubstantiated              |
| K . POM Jason Deonarinesingh | Force: On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh struck § 87(2)(b) with an asp.         | K . Unfounded                    |
| L . POM Jason Deonarinesingh | Force: On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh used physical force against § 87(2)(b) | L . Exonerated                   |

## Synopsis

On September 17, 2006, at approximately 9:00 PM, officers arrived at § 87(2)(b) in Brooklyn where § 87(2)(b) and § 87(2)(b) were standing. An officer, identified by this investigation as Officer Troy Luis, approached § 87(2)(b) and searched him (allegation A), allegedly threw § 87(2)(b) against a van (allegation B) and then arrested him and put him into a police van. Two officers, identified by this investigation as Officer Deonarinesingh and Officer Antonio Arroyo, transported § 87(2)(b) to the 69<sup>th</sup> Precinct stationhouse where he was released with summonses for § 87(2)(b). § 87(2)(b)'s girlfriend, § 87(2)(b) came to the stationhouse when § 87(2)(b) was released. § 87(2)(b) told her that he did not want her to speak with the officers, and he yelled obscenities at the officers gathered outside the stationhouse. An officer, identified by this investigation as Sergeant Joanne Gonzalez, told § 87(2)(b) that if he did not stop yelling and leave then he would be arrested again, and Officer Arroyo allegedly said, "nigger, I don't have my uniform any more, we can take it to the street" (allegation C). § 87(2)(b) did not stop, and Officer Arroyo, Officer Deonarinesingh, Officer Luis, and other unidentified officers allegedly rushed him and began to punch him repeatedly (allegations B, D, E, and, F). § 87(2)(b) attempted to intervene, and she scratched Officer Arroyo before being arrested by an officer identified by this investigation as Officer Charlene Hernandez. The officers handcuffed § 87(2)(b) and an officer, identified by this investigation as Officer Patrick Smith, took § 87(2)(b) into a back room of the stationhouse and allegedly said to him, "listen, nigger, this is my fucking country, you wanna fight" (allegation G), and he allegedly slapped the right side of § 87(2)(b)'s face (allegation H).

On December 20, 2006, at approximately 4:00 PM, § 87(2)(b) and his friend § 87(2)(b) were standing together in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. § 87(2)(b) was smoking a marijuana cigar when Officer Deonarinesingh and Officer Smith approached them. § 87(2)(b) and § 87(2)(b) ran from the officers in separate directions. Officer Smith apprehended § 87(2)(b) and allegedly threw him against the police van (allegation I). Officer Deonarinesingh allegedly drew his gun (allegation J) and chased § 87(2)(b) until § 87(2)(b) stopped and turned around, at which point Officer Deonarinesingh allegedly drew his asp and struck § 87(2)(b) above his right eye (allegation K and L). § 87(2)(b) fell to the ground, and Officer Deonarinesingh put him in handcuffs and arrested him for § 87(2)(b).

This complaint was filed with the CCRB on December 20, 2006, nearly three months after the first date of incident. § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegation A be "exonerated." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegation B be "unsubstantiated." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegation C be "unsubstantiated." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegations D and E be "unsubstantiated." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegation F be closed as "officer(s) unidentified." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegations G and H be "unsubstantiated."

§ 87(2)(g) it is therefore recommended that allegation I be closed as "victim uncooperative." § 87(2)(g)

§ 87(2)(g) it is therefore recommended that allegation J be “unsubstantiated.” § 87(2)(g)

it is recommended that allegation K be “unfounded.” § 87(2)(g)

it is recommended that allegation L be “exonerated.”

### Summary of Complaint

#### § 87(2)(b) (complainant/victim)

§ 87(2)(b) is a § 87(2)(b) black female, § 87(2)(b) with black hair and brown eyes. § 87(2)(b) made statements regarding these incidents when she filed this complaint on December 20, 2006 (encl. 4a-d), during a telephone conversation with the undersigned investigation on January 3, 2007 (encl. 5a-b), and during an interview at the CCRB on February 2, 2007 (encl. 6a-h). § 87(2)(b)

*September 17 and 18, 2006*

On September 17, 2006, at approximately 7:00 PM, § 87(2)(b) received a call informing her that her boyfriend, § 87(2)(b) had been arrested. § 87(2)(b) went to the 69<sup>th</sup> Precinct stationhouse at approximately 11:30 PM. § 87(2)(b) was being released from the stationhouse with property that had been in his car, which the officers took to the stationhouse because it was improperly registered. § 87(2)(b) stood outside the stationhouse and spoke with an officer, identified through this investigation as Sergeant Joanne Gonzalez about why the car was not being released. § 87(2)(b) described Sergeant Gonzalez as a Hispanic female in uniform, 5’8” tall, medium build, with black hair with highlights.

§ 87(2)(g) In her telephone statement, § 87(2)(b) stated that § 87(2)(b) told Sergeant Gonzalez, “Fuck you, I don’t care what you’re saying.” However, when she made her statement at the CCRB, § 87(2)(b) stated that § 87(2)(b) told her that he did not want her to talk to the officers because he hates police officers because of how they treated him, and he did not use profanity. Sergeant Gonzalez told § 87(2)(b) that if he continued to speak like that in front of the precinct, then she would have to arrest him. § 87(2)(b) turned to § 87(2)(b) and said, “Stupid, why would you stand in front of the precinct and do that?”

In her telephone statement, § 87(2)(b) said that an officer, whom she described as a Hispanic male, approximately 5’7” tall, with a medium to athletic build and black hair, told § 87(2)(b) “I’m gonna hurt you.” However, she did not mention this during her interview at the CCRB. § 87(2)(g)

§ 87(2)(b) walked away from the precinct stationhouse when the officers standing outside charged at him. § 87(2)(b) lost sight of § 87(2)(b) because an unidentified officer bumped into her causing her to fall on top of a nearby marked police vehicle. Another officer, identified through this investigation as Officer Antonion Arroyo, landed on top of § 87(2)(b) and another officer, identified through this investigation as Officer Charlene Hernandez, handcuffed and arrested § 87(2)(b) § 87(2)(b) did not try to resist, and she did not physically do anything to keep the officers from getting to or arresting § 87(2)(b) She was approximately ten feet from where the officers arrested § 87(2)(b)

Officer Hernandez told § 87(2)(b) that she hit Officer Hernandez in the face. § 87(2)(b) said that this might have happened, because when she was bumped by the officer and landed on the marked police vehicle, her arms went up in the air and she could have accidentally hit someone. Officer Hernandez initially told § 87(2)(b) that she was going to receive a summons. Officer Hernandez later said that § 87(2)(b) was going to go to Brooklyn Central Booking because she scratched Officer Arroyo and sent him to the hospital.

December 20, 2006

On December 21, 2006, at approximately 4:00 PM, § 87(2)(b) was walking in the vicinity of § 87(2)(b) and § 87(2)(b) on her way to § 87(2)(b) in Brooklyn. § 87(2)(b) saw § 87(2)(b) walking towards her down the block with two of his friends, § 87(2)(b) and § 87(2)(b). § 87(2)(b) did not know § 87(2)(b) last name. During her initial telephone statement, § 87(2)(b) stated that § 87(2)(b) was accompanied only by § 87(2)(b). § 87(2)(b) only knew § 87(2)(b) as someone from the neighborhood.

§ 87(2)(b) continued walking and saw a marked police van with an officer in the passenger seat, identified by this investigation as Officer Jason Deonarinesingh. The driver of the van was another officer, identified through this investigation as Officer Patrick Smith, whom she had never seen before. The officers made a U-turn behind § 87(2)(b) and stopped the car. § 87(2)(b) stood near a school and could see the corner store to which § 87(2)(b) had gone. § 87(2)(b) saw § 87(2)(b) walking across the street, and § 87(2)(b) asked him where § 87(2)(b) was. § 87(2)(b) told § 87(2)(b) that § 87(2)(b) and § 87(2)(b) were hiding in the ally.

§ 87(2)(b) saw that the van's driver's side door was open, and she saw Officer Smith throw § 87(2)(b) twice against the van; during her telephone statement, § 87(2)(b) stated that Officer Smith threw § 87(2)(b) against the van. § 87(2)(b) ran down § 87(2)(b) and looked into the ally to find § 87(2)(b) but he and Officer Deonarinesingh were already gone. She returned to the spot in front of the school, and she saw that § 87(2)(b) was handcuffed and his face was bleeding. § 87(2)(b) was crying, begging for help and asking why they were treating him like this. § 87(2)(b) did not see what happened to § 87(2)(b) between when he was in the ally and when he was put in handcuffs. § 87(2)(b) noticed that § 87(2)(b) was trying to get the attention of a tall, black muscular officer at the scene. § 87(2)(b) stated that this officer, who was not identified by this investigation, wore a gray and black turtleneck shirt and he exited a marked police car.

At the 69<sup>th</sup> Precinct stationhouse, Officer Deonarinesingh told § 87(2)(b) that § 87(2)(b) was injured when he fell to the ground and that he did not hit him. Two of § 87(2)(b)'s brothers, § 87(2)(b) and § 87(2)(b) accompanied her to the precinct to check on § 87(2)(b). § 87(2)(b) was told that § 87(2)(b) was charged with § 87(2)(b). § 87(2)(b) told another unidentified officer that he wanted to file a complaint against the officer who hit § 87(2)(b) and the unidentified officer said, "your work here is done. I recommend that you leave."

§ 87(2)(b)

### Results of Investigation

#### Civilian statements

§ 87(2)(b) (victim)

§ 87(2)(b) is a § 87(2)(b) black male, § 87(2)(b) with black hair and brown eyes. He made statements regarding these incidents during a telephone conversation with the undersigned investigator on January 11, 2007 (encl. 7a-b), and during an interview at the CCRB on January 24, 2007 (encl. 8a-i). § 87(2)(b)

§ 87(2)(g)

September 17 and 18, 2006

On September 16, 2006, at approximately 6:00 PM, § 87(2)(b) was standing with his brothers § 87(2)(b) and § 87(2)(b) his friend, § 87(2)(b) and his girlfriend, § 87(2)(b) in the vicinity of § 87(2)(b) in. § 87(2)(b) had parked his GS 300 Lexus in front of his home located at § 87(2)(b) in Brooklyn. Three or four police officers drove up in three or four cars, including one marked police van, and an officer, identified through this investigation as Officer Troy Luis (black male in uniform, 6'1" tall, stocky build, black, short hair and wearing glasses; § 87(2)(b) read the name "Lui" from the officer's shield), approached § 87(2)(b) and searched him without saying anything. A second officer, identified by this investigation as Sergeant Joanne Gonzalez (Hispanic female in uniform, 5'6" tall, 120 pounds, with brown hair in a ponytail), accompanied Officer Luis, and two other officers, identified by this investigation as Officer Antonio Arroyo (Hispanic male in uniform with light-brown skin, 5'6" tall, 200 pounds, with low-cut black hair; § 87(2)(b) thought that the officer's name was "Roberto") and Officer Jason Deonarinesingh (black/Hispanic male in uniform, 5'6" tall, medium build, with black, curly hair), approached § 87(2)(b) and his brothers.

Officer Luis searched inside § 87(2)(b)'s pockets. Officer Luis asked § 87(2)(b) for his keys, driver's license and registration and that Officer Luis took § 87(2)(b)'s keys from his pocket. § 87(2)(b) asked the officers why they wanted his keys, and Officer Luis grabbed him by his shirt and banged him against the police van. § 87(2)(b) asked the officers why they were harassing him and told them that what they were doing was racist. Officer Luis then handcuffed § 87(2)(b) and put him in the van. The officers called for backup after he was put in the van. He did not know why back up was called because his family was not doing or saying anything to the officers.

Officer Arroyo and Officer Deonarinesingh took § 87(2)(b) in the van to § 87(2)(b) between § 87(2)(b) while Officer Luis and Sergeant Gonzalez took § 87(2)(b)'s car. The officers in the van cursed at him for two hours, telling him that his "girl is a bitch," that his car had been used in a drive-by, before taking § 87(2)(b) to the precinct stationhouse. Officer Arroyo showed § 87(2)(b) a bullet and told him that the bullet belonged to § 87(2)(b). Officer Arroyo said that if § 87(2)(b) would show them someone who had drugs or guns, then the officers would throw away the bullet and let § 87(2)(b) go. § 87(2)(b) refused to tell them anything because he did not know anyone who had guns or drugs and the bullet did not belong to him. The officers took § 87(2)(b) and put him in the precinct holding cell. § 87(2)(b) was issued a summons for improper vehicle registration and was released.

During his CCRB interview, § 87(2)(b) said that when § 87(2)(b) came to the stationhouse, § 87(2)(b) argued with § 87(2)(b) about talking to the officers and that he raised his voice, but neither he nor § 87(2)(b) used any profanity. Officer Arroyo told him, "nigger, I don't have my uniform any more, we can take it to the street," which § 87(2)(b) understood to mean that Officer Arroyo wanted to fight him. As he crossed the street, Officer Luis, Officer Arroyo, Officer Deonarinesingh and ten other officers ran after him and hit him. § 87(2)(b) felt "mad people" hitting him; he could not tell how many officers were hitting him, but there were a lot of them. § 87(2)(b) he did not wave his arms to keep the officers away, nor did he bite any officers. § 87(2)(b) acknowledged saying, "I wish I have Aids," but could not explain why he said that. Officer Arroyo hit himself and showed § 87(2)(b) his hand, stating that § 87(2)(b) bit him. § 87(2)(b) asked all of the officers to take him to the hospital, but no one would take him. § 87(2)(b) could not say what any one specifically said in response to his request to go to the hospital, and he could not specify whom he asked.

An officer, identified by this investigation as Officer Patrick Smith, took § 87(2)(b) to a back room at the precinct. § 87(2)(b) described Officer Smith as a white male, 5'7" tall, 175 pounds, approximately thirty-six years old, with black hair. Officer Smith never told § 87(2)(b) that he was a police officer, but § 87(2)(b) assumed that because he was inside the precinct that he was an officer. Officer Smith told § 87(2)(b) "listen, nigger, this is my fucking country, you wanna fight?" and he slapped the right side of § 87(2)(b)'s face. Officer Arroyo witnessed this but did not say anything.

A female officer, who was identified by this investigation as Officer Charlene Hernandez, arrested § 87(2)(b) for getting in the way. § 87(2)(b) later learned that he was charged with § 87(2)(b). § 87(2)(b) went to § 87(2)(b) and received treatment after he was released from central booking. § 87(2)(b) told medical personnel at § 87(2)(b) that his right knee and face hurt from "being hit by police officer § 87(2)(b) days ago" (encl. 37a-p).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

*December 20, 2006*

On December 20, 2006, § 87(2)(b) was walking with his friend § 87(2)(b) in the vicinity of § 87(2)(b) and § 87(2)(b) when he saw an officer, identified by this investigation as Officer Patrick Smith, driving a marked police van with a second officer in the passenger seat, who was identified by this investigation as Officer Jason Deonarinesingh. Officer Deonarinesingh and Officer Smith stopped the van on § 87(2)(b) in front of a school. § 87(2)(b) walked in the opposite direction so that he would not pass the officer's van, and he turned into a little ally. § 87(2)(b) was scared that the officers would "put their hands" on him if he ran into them. Officer Deonarinesingh and Officer Smith exited the van and chased § 87(2)(b) and § 87(2)(b) through the ally. Officer Deonarinesingh drew his gun and held it by his side as he chased him.

§ 87(2)(b) saw Officer Smith grab § 87(2)(b) and slammed him against the van "more than five times" and put him in handcuffs. When § 87(2)(b) saw what happened to § 87(2)(b) he ran back to the corner store in order to be around more people, and he yelled for help and put his hands up. Officer Deonarinesingh ran up to § 87(2)(b) put away his gun and drew an asp with his left hand, and he struck

§ 87(2)(b) on his left temple. Officer Deonarinesingh pushed § 87(2)(b) to the ground and handcuffed him. § 87(2)(b) and § 87(2)(b) were taken in the police van to the 69<sup>th</sup> Precinct stationhouse. He was searched at the precinct, but he said that the officers did not find anything on him. However, § 87(2)(b) was charged with possession of a knife. § 87(2)(b) stated that he was not carrying a knife. § 87(2)(b) was charged with marijuana possession, but the officers did not find marijuana. § 87(2)(b)'s arrest photograph showed a bandage next to his left eye and red-colored stains on his hood.

§ 87(2)(b) was taken from the precinct by ambulance to § 87(2)(b). Officer Smith accompanied him to the hospital. § 87(2)(b) told Officer Smith, "You see what you just did to me? You could have a child and someone could treat him the same way." Officer Smith replied, "You say that again, I will make you never eat out of a spoon no more," and he squeezed the handcuffs tighter. § 87(2)(b) thought that Officer Smith meant to break all of his teeth. § 87(2)(b)

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) (witness)

§ 87(2)(b) § 87(2)(b)'s older brother, made a statement regarding these incidents during a telephone conversation with the undersigned investigator on May 24, 2007 (encl. 9). He did not provide additional pedigree information for himself. On December 20, 2006, he went to the 69<sup>th</sup> Precinct stationhouse to find out what happened to § 87(2)(b) and he saw that § 87(2)(b)'s head was bleeding, but he did not ask to file a complaint. He stated that he went to the precinct stationhouse by himself, but his brother, § 87(2)(b) was already there when he arrived.

§ 87(2)(b)

§ 87(2)(b) (witness)

§ 87(2)(b) made a statement during a telephone conversation with the undersigned investigator on February 11, 2008 (encl. 10a-b). § 87(2)(g)

§ 87(2)(b) was with § 87(2)(b) and § 87(2)(b) at § 87(2)(b) in Brooklyn. They were not listening to any music, and § 87(2)(b)'s car was turned off. They had been at § 87(2)(b) in Brooklyn for approximately twenty minutes when a dark-colored Impala approached and double-parked next to § 87(2)(b)'s car. Three officers got out of the car. The driver, identified by this investigation as Officer Troy Luis (black male in uniform, approximately 6'4" to 6'5" tall and 190 to 210 pounds, with short hair and glasses), got out of the car and approached § 87(2)(b) and two other officers, identified by this investigation as Officer Jason Deonarinesingh (a black/Hispanic male, approximately 5'8" tall and 170 pounds, with black curly hair and a dark complexion), and Officer Yancy Blowe (a black male, approximately 5'7" tall and 185 pounds, with black straight hair), got out of the car. Officer Deonarinesingh approached § 87(2)(b) and Officer Blowe approached § 87(2)(b).

Officer Luis told them to stand against the car. § 87(2)(b) and § 87(2)(b) did not immediately comply and asked what was wrong. Officer Luis told them to "shut the fuck up" and get against the cars. Officer Deonarinesingh and Officer Blowe reached into § 87(2)(b)'s and § 87(2)(b)'s pockets, respectively, while Officer Luis searched § 87(2)(b).

At some point Officer Luis slammed § 87(2)(b) against a van that was parked nearby. § 87(2)(b) was in shock and did not respond. § 87(2)(b) did not get into a physical fight with Officer Luis. The officers told them to be quiet or they would be taken to jail. Officer Luis and Officer Deonarinesingh searched § 87(2)(b)'s car. They searched the front, glove compartment, under the front and back seats and in the trunk.

About a minute after the first officers arrived, another unmarked car with an unidentified officer and a sergeant, identified by this investigation as Sergeant Joanne Gonzalez (Hispanic female, approximately 5'6" tall and 125 pounds, with long hair), and a van with three or four other officers arrived while § 87(2)(b) and § 87(2)(b) were being searched. All of the officers got out of their cars. § 87(2)(b) and § 87(2)(b) tried to ask Sergeant Gonzalez what was happening, and some of the other officers told them to be quiet.

§ 87(2)(b) was getting upset that he was being searched for no reason, and he asked the officers why they were searching his car. Officer Luis told § 87(2)(b) to "shut the fuck up" or he would punch

him in the face. § 87(2)(b) and § 87(2)(b) told § 87(2)(b) to be quiet because they did not want to see Officer Luis really hitting him, and § 87(2)(b) stopped talking.

Officer Luis told § 87(2)(b) that he was going to take his car and that § 87(2)(b) could get it later at the precinct. Officer Luis got into § 87(2)(b)'s car and drove away, and the other officers left at the same time. § 87(2)(b) did not think that anyone was arrested that night. The entire interaction lasted twenty-five minutes.

§ 87(2)(b) and § 87(2)(b) called § 87(2)(b) and the four of them went to the precinct stationhouse. They talked to an unidentified officer who would not give the car back to § 87(2)(b). Nothing else happened at the precinct.

Between February 11 and February 26, 2008, four calls and two letters were sent to § 87(2)(b). § 87(2)(b) was contacted on February 11, 2008, at which time he scheduled an interview for February 19, 2008. § 87(2)(b) failed to appear for his scheduled interview, and he did not call to cancel or reschedule. Since February 11, 2008, § 87(2)(b) has not responded to the undersigned investigator's contact attempts.

**§ 87(2)(b) (witness)**

§ 87(2)(b) was contacted via telephone on August 21, 2007. He did not provide additional pedigree information for himself. He stated that he did not remember the incident that occurred on September 17, 2006.

**Civilians not interviewed**

**§ 87(2)(b) (victim)**

Between April 6 and August 21, 2007, five calls were made and three letters were sent to § 87(2)(b). Two of the letters were returned by the United States Postal Service. § 87(2)(b) left a message on April 30, 2007, including a telephone number where he could be reached. Subsequent attempts to contact § 87(2)(b) at that number were unsuccessful. Since April 30, 2007, § 87(2)(b) has not responded to contact attempts.

**§ 87(2)(b) and § 87(2)(b) (witnesses)**

Between February 6 and February 14, 2008, two letters were sent to § 87(2)(b) and § 87(2)(b). The letters were not returned by the United States Postal Service. § 87(2)(b) and § 87(2)(b) did not respond to either of the letters. Additional contact information found through database searches of 411.com and Lexis-Nexis was inaccurate.

**Police officer statements regarding September 17 and 18, 2006**

**Officer Troy Luis (subject)**

Officer Luis is a black male, § 87(2)(b), with black hair and brown eyes. He is currently assigned to the Specialized Training Section, where he was transferred on February 12, 2008, and has been a member of the NYPD for two years.

In his memo book, Officer Luis noted that at 8:40 PM, he was part of a SNEU operation in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. At 9:33 PM, Officer Luis noted that he had one individual under arrest. At 10:00 PM, Officer Luis noted that he was out of service (10-62) and doing administrative duties at the 69<sup>th</sup> Precinct stationhouse.

Officer Luis was interviewed at the CCRB on August 3, 2007 (encl. 12a-b). On September 17, 2006, Officer Luis worked from 4:00 PM to 12:00 AM. He was assigned to the 69<sup>th</sup> Precinct SNEU (Street Narcotics Enforcement Unit) with Sergeant Joanne Gonzalez and Officer Yancy Blowe. § 87(2)(g)

On September 17, 2006, at approximately 9:00 PM, 69<sup>th</sup> Precinct SNEU team was set up in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. The SNEU team, consisting of five officers, responded to § 87(2)(b) at the same time. He could not remember why they responded to that specific location. When he arrived at the location, Officer Luis saw a black, four-door Lexus sedan double-parked and left running, and a group of four or five males standing on the sidewalk in front of a private house. He did not know how long the Lexus was left double-parked and running. The lighting was poor and he had to use his flashlight to see the males. Officer Luis asked the group of males who owned the car, and one of the males whom Officer Luis identified as § 87(2)(b) asked, "Why the fuck do you want to know?" Officer Luis told § 87(2)(b) to please stop cursing, but § 87(2)(b) continued to use profanity.

Officer Luis decided to arrest § 87(2)(b) after his initial request for him to stop using profanity was ignored. Officer Luis did not have any physical contact with the other males or with § 87(2)(b) before he put him in handcuffs. The other males were speaking in a language that he could not understand. When Officer Luis tried to handcuff him, § 87(2)(b) tried to pull away. He did not know what the other males were doing as he was focused on § 87(2)(b) and could not understand what they were saying. No one else was arrested or escorted from the location. § 87(2)(b) was placed against a vehicle when placing him in handcuffs. He frisked and searched § 87(2)(b)'s waistband and pockets for sharp objects.

One of the officers, Officer Luis could not remember who, checked the Lexus' license plates inside his vehicle and found that they were registered to another car. Officer Luis had never before seen § 87(2)(b)'s car. § 87(2)(b) was taken to the 69<sup>th</sup> Precinct stationhouse, and Officer Luis drove § 87(2)(b)'s car directly back to the stationhouse and filed a voucher for it. It took him approximately three minutes to get to the stationhouse. He was alone in § 87(2)(b)'s car. § 87(2)(b) was released from the stationhouse with summonses for § 87(2)(b).

He saw § 87(2)(b) with some of the males who were at § 87(2)(b) at the stationhouse when § 87(2)(b) was released, but he did not interact with them. He heard § 87(2)(b) asking why they were harassing § 87(2)(b) that they bought the car from a dealer and that the dealer did not give them the title so they could not get it insured. Officer Luis heard a commotion out in front of the stationhouse, but he was in the rear of the stationhouse at the time. He later saw § 87(2)(b) in handcuffs inside the stationhouse. Officer Luis did not see if any other officers interacted with § 87(2)(b) within the stationhouse. Officer Luis had no recollection of any officers taking § 87(2)(b) to a back room, calling him a nigger and slapping his face.

#### ***Officer Yancy Blowe (witness)***

Officer Blowe is a thirty year old black male, § 87(2)(b), with black hair and brown eyes. He is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for four years.

In his memo book (encl. 13a-d), Officer Blowe noted that at 9:00 PM, three male individuals were stopped in front of § 87(2)(b) in Brooklyn in regards to a radio call. Officer Luis issued a criminal court summons to § 87(2)(b).

He was interviewed at the CCRB on September 11, 2007 (encl. 14a-b). On September 17, 2006, Officer Blowe worked from 3:00 PM to 2:05 AM the following morning. He was assigned to SNEU with Officer Luis in a black, unmarked Chevrolet Impala number § 87(2)(b) § 87(2)(g).

When they arrived at the location, Officer Blowe saw three males, one of whom was § 87(2)(b). Officer Blowe recognized § 87(2)(b) from having arrested him for § 87(2)(b) in the past. He stated that § 87(2)(b) one of his brothers and another unidentified male were "blasting" music from the speakers of a black Lexus parked in front of the location. Officer Blowe and Officer Luis were the first officers to arrive. They told § 87(2)(b) and the two other individuals to turn down the music and move, but § 87(2)(b) would not comply. The other two individuals, though, started to leave the location. § 87(2)(b) would not turn down the music, and Officer Blowe and Officer Luis arrested him for § 87(2)(b). § 87(2)(b) was flailing his arms and putting them in front of his body to keep the officers from putting him in handcuffs, and Officer Blowe had to assist Officer Luis. § 87(2)(b) was saying, "I don't have to move, I live here." He did not see Officer Luis slam § 87(2)(b) into a car before putting him into a police vehicle.

Officer Blowe did not interact with § 87(2)(b) and he stated that he saw her for the first time at the stationhouse. When he left the stationhouse, § 87(2)(b) was still at the stationhouse. Officer Blowe had no recollection of any incidents at the stationhouse.

#### ***Sergeant Joann Gonzalez (witness)***

Sergeant Gonzalez is a § 87(2)(b) year old Hispanic female, § 87(2)(b) with auburn hair and brown eyes. She is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for twelve years.

In her memo book (encl. 15a-c), Sergeant Gonzalez noted that at 8:40 PM, the 69<sup>th</sup> Precinct SNEU conducted an operation in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, and at 9:30 PM, Officer Luis had § 87(2)(b) was under arrest.

She was interviewed at the CCRB on August 15, 2007 (encl. 16a-c). On September 17, 2006, Sergeant Gonzalez worked from 2:50 PM to 3:47 AM the following morning. She was assigned to supervise the 69<sup>th</sup> Precinct SNEU team with Officer Kristopher Allua in an unmarked car number § 87(2)(g).

On September 17, 2007, at approximately 9:30 PM, Officer Luis called Sergeant Gonzalez to § 87(2)(b) in Brooklyn and told her that he had one person, whom he identified as § 87(2)(b) under arrest for disorderly conduct. Sergeant Gonzalez did not know why Officer Luis was at § 87(2)(b). Sergeant Gonzalez stated that she could have been anywhere in the vicinity when she received Officer Luis' call, but she usually remains at § 87(2)(b). § 87(2)(e), § 87(2)(f). When she arrived at § 87(2)(b), she saw Officer Luis and Officer Blowe with § 87(2)(b) already handcuffed. § 87(2)(b) did not have any injuries when she saw him. Officer Luis did not tell her about the circumstances surrounding § 87(2)(b)'s arrest. A car was removed from the location and taken to the stationhouse because it was improperly registered; Sergeant Gonzalez could not recall who drove the car to the stationhouse. She did not interact with any civilians at the location. Sergeant Gonzalez was at § 87(2)(b) for two to three minutes before the SNEU team left and set up in another location. She did not return to the stationhouse until 10:00 PM. § 87(2)(b) was the only individual arrested by her SNEU team on September 17, 2006.

At approximately 11:00 PM, § 87(2)(b) was released from the stationhouse with a summons. As soon as he was released, § 87(2)(b) started to act violently and yelled profanities at the officers. Sergeant Gonzalez told § 87(2)(b) that he had to stop or he would be arrested. Sergeant Gonzalez was speaking with § 87(2)(b)'s girlfriend, § 87(2)(b) who had come to the stationhouse along with a couple of § 87(2)(b)'s friends. She was telling § 87(2)(b) that she would release the speakers and stereo equipment from the car to her, but she could not allow them to take an improperly registered car without insurance and drive it home. § 87(2)(b) dragged § 87(2)(b) away and told him to quiet down. § 87(2)(b) continued to yell, "Fuck you, you're not going to fucking help me." Sergeant Gonzalez told § 87(2)(b) to leave the stationhouse or he would be arrested. § 87(2)(b) went outside. Shortly after, Sergeant Gonzalez heard a commotion from in front of the stationhouse. When she went outside, she saw § 87(2)(b) and § 87(2)(b) arguing. § 87(2)(b) grabbed § 87(2)(b)'s face with his hand around her chin, and he was yelling, "Fuck you, I'm not leaving. What the fuck you going to do?" Officer Arroyo and Officer Deonarinesingh then arrested § 87(2)(b). § 87(2)(b) threw punches and assaulted two officers, including Officer Charlene Hernandez, while trying to prevent § 87(2)(b)'s arrest. The tours were changing, and officers from the midnight tour were part of the altercation; however, Sergeant Gonzalez did not remember the identities of these officers.

Sergeant Gonzalez turned her attention to the two other civilians who had arrived with § 87(2)(b). She told them that § 87(2)(b) was going to be arrested again and that there was no need for them to get involved. They were very polite and told § 87(2)(b) to stop resisting. When Sergeant Gonzalez turned back around, the officers had § 87(2)(b) in handcuffs, and officers Arroyo and Deonarinesingh were bringing in § 87(2)(b). Later, Officer Arroyo showed Sergeant Gonzalez scratch welts and that his shirt was broken, and he said that § 87(2)(b) did that when she was trying to keep him from arresting § 87(2)(b). Sergeant Gonzalez filed line of duty paperwork for the injuries. § 87(2)(b) bit either Officer Arroyo or Officer Deonarinesingh, but she could not recall who. She did not witness § 87(2)(b) or § 87(2)(b) injuring either Officer Arroyo or Officer Deonarinesingh. Either Officer Arroyo or Officer Deonarinesingh told her that § 87(2)(b) shouted, "I wish you would die. I wish I had AIDS so you would die;" but she could not recall which officer told her this. Officer Arroyo and Officer Deonarinesingh went to the hospital. § 87(2)(b) was put into the holding cells where he was held until he was taken to Brooklyn Central Booking. She did not interact with § 87(2)(b) after he was arrested in front of the stationhouse. She did not see any injuries on § 87(2)(b) or hear him request medical attention. She did not hear any officers call § 87(2)(b) a nigger.

Sergeant Gonzalez recognized § 87(2)(b) from a photograph taken during her CCRB interview; she stated that § 87(2)(b) was not at § 87(2)(b) when § 87(2)(b) was arrested. Sergeant Gonzalez recognized her from the stationhouse later that evening.

Sergeant Gonzalez brought copies of UF-61 complaint reports for § 87(2)(b) showing his history of § 87(2)(b). She provided the copies to the assigned investigator.

**Officer Jason Deonarinesingh (subject)**

Officer Deonarinesingh is a black male, § 87(2)(b), with black, curly hair and brown eyes. He is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for two years.

In his memo book (encl. 19a-d), Officer Deonarinesingh noted that at 9:00 PM, three males were stopped in front of § 87(2)(b) in Brooklyn, and a criminal court summons was issued to § 87(2)(b). At 11:36 PM, two individuals, including § 87(2)(b) were under arrest, § 87(2)(b).

He was interviewed at the CCRB on June 12, 2007 (encl. 24a-c). On September 17, 2006 Officer Deonarinesingh worked from 3:00 PM to 11:35 PM. He was assigned to the prisoner van for the SNEU team with Officer Arroyo. § 87(2)(g)

§ 87(2)(b) was already in handcuffs when Officer Deonarinesingh and Officer Arroyo arrived. They transported § 87(2)(b) to the stationhouse. The trip took four minutes, and they did not stop anywhere on the way. Officer Deonarinesingh did not have a conversation with § 87(2)(b) on the way to the stationhouse. Officer Deonarinesingh lodged § 87(2)(b) in the cells.

A few people came to see § 87(2)(b) when he was released from the stationhouse, including § 87(2)(b). § 87(2)(b) was yelling, "Fuck the cops... I'll kill these cops." Officer Deonarinesingh asked § 87(2)(b) four or five times to leave, but § 87(2)(b) remained in front of the stationhouse and continued cursing. Officer Deonarinesingh told him, "You just received a summons, and you don't want to get in any more trouble." § 87(2)(b) tried to calm § 87(2)(b) down, but § 87(2)(b) called her a bitch. The civilians with § 87(2)(b) began to crowd the officers in front of the stationhouse. Officer Deonarinesingh grabbed § 87(2)(b)'s hand to place him under arrest for § 87(2)(b). § 87(2)(b) began to fight and throw punches, and he bit Officer Deonarinesingh's left ring finger. § 87(2)(b) was on the ground after he bit Officer Deonarinesingh, but he could not recall how § 87(2)(b) was brought to the ground. At the time of his CCRB interview, Officer Deonarinesingh had a scar on his finger that he stated came from § 87(2)(b)'s bite. Officer Deonarinesingh let go because his hand was hurting, and another unidentified officer put § 87(2)(b) in handcuffs. Officer Deonarinesingh did not see any of the officers strike § 87(2)(b). § 87(2)(b) he stated that they were trying to get his hands to handcuff him. Officer Arroyo was injured; § 87(2)(b) scratched his chest as she tried to push him off of § 87(2)(b). § 87(2)(b) Officer Deonarinesingh did not think that § 87(2)(b) was injured. He did not hear any of the officers call § 87(2)(b) a nigger.

**Officer Antonio Arroyo (subject)**

Officer Arroyo is a Hispanic male, § 87(2)(b), with black hair and brown eyes. He is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for three years.

In his memo book (encl. 25a-d), Officer Arroyo noted that at 8:40 PM, he was present at § 87(2)(b) and § 87(2)(b) in Brooklyn. At 9:33 PM, one individual was under arrest (10-92C), and he returned to the stationhouse at 10:00 PM for administrative work. At 11:36 PM, one female and one male were under arrest in front of the 69<sup>th</sup> Precinct stationhouse located at 9720 Foster Avenue. § 87(2)(b)

He was interviewed at the CCRB on June 15, 2007 (encl. 27a-b). On September 17, 2006, Officer Arroyo worked from 3:00 PM to 11:35 PM. He was assigned to the SNEU team with Officer Deonarinesingh in a marked patrol vehicle number 2713. § 87(2)(g)

When Officer Arroyo and Officer Deonarinesingh attempted to arrest § 87(2)(b) outside of the 69<sup>th</sup> Precinct stationhouse, § 87(2)(b)'s girlfriend, got in between them and said, "Don't touch him, he didn't do shit, leave him alone." § 87(2)(b) scratched Officer Arroyo's chest, and Officer Hernandez arrested § 87(2)(b). § 87(2)(b) he went to § 87(2)(b) and went line of duty for four days afterward.

**Officer Patrick Smith (subject)**

Officer Smith is a § 87(2)(b) year old American Indian male, § 87(2)(b), with brown hair and brown eyes. He is currently assigned to the 69<sup>th</sup> Detective Squad and has been a member of the NYPD for five years. He was interviewed at the CCRB on December 21, 2007 (encl. 35a-b). On September 17, 2006, Officer Smith worked in uniform and was assigned to the 69<sup>th</sup> Precinct SNEU.

Officer Smith had no recollection of this incident. Officer Smith was familiar with § 87(2)(b) and he said that he would not have released § 87(2)(b) from the stationhouse with a summons. Officer Smith did not recall conducting SNEU operations in the vicinity of § 87(2)(b) on September 17, 2006. Officer Smith did not recognize § 87(2)(b) when shown a photograph taken of her during her CCRB interview on February 2, 2007, or from a copy of her arrest photograph taken on September 18, 2006.

**Officer Charlene Hernandez (witness)**

Officer Hernandez is a Hispanic female, § 87(2)(b), with brown hair and brown eyes. She is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for three years.

In her memo book (encl. 28a-c), Officer Hernandez noted that § 87(2)(b) of § 87(2)(b) in Brooklyn, NY 11203, came to the 69<sup>th</sup> Precinct stationhouse to pick up § 87(2)(b) and § 87(2)(b)'s property. She listed the following property for § 87(2)(b) one yellow chain and charm. She listed the following property for § 87(2)(b) one black bag containing one black wallet with miscellaneous cards; one Playstation Portable (PSP); miscellaneous items; a red bag containing keys and key-rings; miscellaneous clothing; and a brush. § 87(2)(b), § 87(2)(b) and § 87(2)(b) signed the fly-sheet of Officer Hernandez's memo book beneath their names.

She was interviewed at the CCRB on August 27, 2007 (encl. 29a-b). On September 17, 2006, Officer Hernandez worked from 11:15 PM to 7:50 AM. She was assigned to be the telephone-switchboard operator. § 87(2)(g)

On September 17, 2006, at approximately 11:35 PM, Officer Hernandez was sitting at her station near the front door of the stationhouse when she heard a "commotion" and went out to see what was happening. She stated that she heard loud screaming. She saw § 87(2)(b) grabbing Officer Arroyo's shirt directly in front of the stationhouse. Officer Hernandez recognized § 87(2)(b) from her arrest photograph, and she stated that she has never seen § 87(2)(b) before or since this incident. She did not hear what Officer Arroyo and § 87(2)(b) were saying. She went to grab § 87(2)(b) and she turned around and hit Officer Hernandez once on her face below her right eye. Officer Hernandez put § 87(2)(b) in handcuffs and brought her into the stationhouse. She did not recall if anyone assisted her in handcuffing § 87(2)(b). She did not file any line-of-duty paperwork or go to the hospital. She resumed her duties as telephone/switchboard operator after bringing § 87(2)(b) into the stationhouse. She stated that Officer Christopher Doll filed the arrest paperwork, but she did not talk to him about the arrests. She did not recall seeing him outside during the incident. Aside from Officer Hernandez, Officer Arroyo was the only officer who interacted with § 87(2)(b) and he did not curse at her.

**Officer Christopher Doll (witness)**

Officer Doll is a white male, § 87(2)(b), with brown hair and brown eyes. He is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for five years.

In his memo book (encl. 30a-b), Officer Doll noted that at 12:01 AM, two individuals were under arrest. He did not note the individuals' identities.

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

He was interviewed at the CCRB on June 15, 2007 (encl. 33a-b). On September 17, 2006, Officer Doll worked from 11:27 PM to 7:50 AM the following morning. He was assigned to work as the telephone switchboard operator inside the 69<sup>th</sup> Precinct stationhouse. Officer Doll did not witness the incident that occurred outside the 69<sup>th</sup> Precinct stationhouse at approximately 11:30 PM on September 17, 2007, and he was assigned § 87(2)(b) s and § 87(2)(b) s arrests. He did not recognize § 87(2)(b) or § 87(2)(b) from photographs taken of them during their interviews at the CCRB or from their arrest photographs.

Officer Doll spoke with Officer Arroyo and Officer Deonarinesingh. Officer Arroyo told him that § 87(2)(b) and § 87(2)(b) got into a dispute, and both prisoners were arrested for § 87(2)(b). Officer Doll observed injuries on Officer Arroyo's and Officer Deonarinesingh's hands. Officer Doll did not speak with either of the prisoners, and he did not have any physical contact with them. He did not see if either of the prisoners was injured. Officer Doll could not recall if the prisoners received medical treatment.

***Officer Kristopher Allua (witness)***

Officer Allua is a § 87(2)(b) year old white male, § 87(2)(b), with brown hair and green eyes. He is currently assigned to the 69<sup>th</sup> Precinct and has been a member of the NYPD for three years. His memo book contained no relevant entries (encl. 17a-c). He was interviewed at the CCRB on August 30, 2007 (encl. 18a-b). On September 17, 2006, Officer Allua worked from 3:00 PM to 11:35 PM. He was assigned to be Sergeant Joanne Gonzalez's operator in unmarked vehicle number § 87(2)(b).

Officer Allua had no recollection of this incident. He did not recognize § 87(2)(b) from her Polaroid photograph or arrest photograph. He recognized § 87(2)(b) from being present when § 87(2)(b) was arrested in the past, though he has never personally arrested him. He did not know of § 87(2)(b) s and § 87(2)(b) s arrests at the 69<sup>th</sup> Precinct stationhouse on September 17, 2006.

**Police officer statements regarding December 20, 2006**

***Officer Deonarinesingh (subject)***

In his memo book (encl. 19a-d), Officer Deonarinesingh noted that at 4:17 PM, he had two individuals under arrest in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. He did not note the individuals' identities.

§ 87(2)(a) 160.50

§ 87(2)(a) 160.50

Officer Deonarinesingh made a statement regarding December 20, 2006, during his interview at the CCRB on June 12, 2007 (encl. 24a-c). On December 20, 2006, Officer Deonarinesingh worked from 3:00 PM to 11:35 PM. He was assigned to SNEU with Officer Patrick Smith in marked police van number 5854. § 87(2)(g)

On December 20, 2006, at approximately 4:17 PM, Officer Deonarinesingh and Officer Smith had been observing § 87(2)(b) and § 87(2)(b) on the corner of § 87(2)(b) and § 87(2)(b) in Brooklyn for five minutes when they saw § 87(2)(b) rolling a marijuana cigar. Officer Deonarinesingh was using binoculars to observe them. The officers exited their van and approached § 87(2)(b) and § 87(2)(b). When § 87(2)(b) and § 87(2)(b) saw the officers, they ran in separate directions; the officers did not have a chance to say anything to them. Officer Smith ran after § 87(2)(b) while Officer Deonarinesingh ran after § 87(2)(b).

Officer Deonarinesingh did not draw his gun while chasing § 87(2)(b). § 87(2)(b) ran less than a quarter block before he turned around and pulled out a knife. Officer Deonarinesingh described the knife

as a gravity knife about four or five inches long. He could not recall what color it was, but he filed a voucher for the knife. § 87(2)(b) did not say anything to him. Officer Deonarinesingh struck § 87(2)(b) with his right hand to the left side of § 87(2)(b)'s face with a closed fist as soon as he reached him. § 87(2)(b) dropped the knife, fell to the ground, and Officer Deonarinesingh put § 87(2)(b) in rear cuffs. He only struck § 87(2)(b) the one time, and § 87(2)(b) was compliant afterward. Officer Deonarinesingh did not draw his asp because he did not have time to do so. Officer Deonarinesingh waited two to three minutes for his partner to come with the van.

Other officers responded to the location, but he could not remember who they were. They did not speak with any of the other officers who responded to the scene. They recovered the marijuana cigar from where § 87(2)(b) and § 87(2)(b) were standing on the corner of § 87(2)(b) and § 87(2)(b). The marijuana was field tested and verified. § 87(2)(b) and § 87(2)(b) were put into van § 87(2)(e), § 87(2)(b) and taken back to the 69<sup>th</sup> Precinct stationhouse. Officer Deonarinesingh did not recall seeing injuries on § 87(2)(b). Officer Smith told Officer Deonarinesingh that he caught § 87(2)(b) a block and a half from where he ran, and he brought him right to the van. § 87(2)(b) and § 87(2)(b) spoke in the van, but Officer Deonarinesingh did not hear what they said. Officer Deonarinesingh saw a cut on § 87(2)(b)'s eye, and another unidentified officer took § 87(2)(b) to the hospital. Officer Deonarinesingh did not see Officer Smith interact with § 87(2)(b).

#### ***Officer Patrick Smith (subject)***

Officer Smith's memo book contained no relevant entries (encl. 34a-b). Officer Smith was interviewed at the CCRB regarding December 20, 2006, on August 28, 2007 (encl. 36a-b). On December 20, 2006, Officer Smith worked from 8:00 AM to 4:00 PM. He was assigned to the SNEU team with Officer Deonarinesingh in marked police vehicle § 87(2)(e), § 87(2)(g).

Officer Smith saw § 87(2)(b) and § 87(2)(b) smoking a marijuana cigar, which the officers recognized as marijuana from its smell. The officers were in their van between ten and twenty feet away from § 87(2)(b) and § 87(2)(b) when they smelled the cigar smoke. The officers yelled, § 87(2)(b) "hold on," before turning on the sirens to stop him and § 87(2)(b). Officer Smith recognized § 87(2)(b) because he has been arrested numerous times in the 69<sup>th</sup> Precinct for § 87(2)(b). § 87(2)(b) ran when Officer Deonarinesingh and Officer Smith exited the van. Officer Deonarinesingh chased him, while Officer Smith remained with § 87(2)(b). Officer Smith did not see Officer Deonarinesingh draw either his gun or his asp.

Officer Smith told § 87(2)(b) why he was stopped, and he immediately put him in handcuffs and put him into the van. § 87(2)(b) was compliant and did not struggle. Officer Smith did not throw § 87(2)(b) against the van. Officer Smith then left to find Officer Deonarinesingh and § 87(2)(b). When he found them, he did not see any injuries on § 87(2)(b) and § 87(2)(b) was not saying anything. § 87(2)(b) was also arrested and put into the same van. A sergeant came to the scene to verify the arrest, but Officer Smith did not recall the sergeant's identity. Officer Smith did not recall Officer Deonarinesingh telling him that § 87(2)(b) was armed. § 87(2)(b) was charged with § 87(2)(b).

#### **Medical records**

##### ***September 17 and 18, 2006***

§ 87(2)(a) PHL § 18(6)

##### ***December 20, 2006***

§ 87(2)(a) PHL § 18(6)

**Police department documents**

***September 17 and 18, 2006***

***SPRINT***

A request made to the Monitoring Analysis Section (MAS) at the CCRB had no results for SPRINT records regarding calls made in the vicinity of § 87(2)(b) in Brooklyn on September 17, 2006, between the hours of 4:00 PM and 7:00 PM (encl. 50c).

***Booking Arraignment Disposition System search***

The BADS records for arrests made in the 69<sup>th</sup> Precinct on September 18, 2006, indicate that both § 87(2)(b) and § 87(2)(b) were arrested at 9720 Foster Avenue on September 18, 2006. Though there was one other arrest that occurred at that address on this date, § 87(2)(b) and § 87(2)(b) were the only two people whose arrests occurred at the same time and were processed by Officer Doll (encl. 38).

***Roll call, 69<sup>th</sup> Precinct, tour 3, on September 17, and tour 1 on September 18, 2006***

officers Antonio Arroyo, Jason Deonarinesingh, Troy Luis, Patrick Smith, Yancy Blowe, Kristopher Allua and Kevin Savary were assigned to the precinct SNEU team with Sergeant Joann Gonzalez. Officer Hernandez was initially assigned to patrol sectors A and C, but her assignment was changed to telephone/switchboard operator. Officer Doll was also assigned as a telephone/switchboard operator (encl. 39a-i).

***Command log, 69<sup>th</sup> Precinct, September 17 and 18, 2006***

§ 87(2)(b) was brought to the stationhouse by Officer Luis at 10:00 PM and was charged with disorderly conduct. He was issued summonses § 87(2)(b), § 87(2)(b) and § 87(2)(b) at 11:35 PM. At 11:45 PM, § 87(2)(b) and § 87(2)(b) were arrested; § 87(2)(b) was charged with § 87(2)(b); § 87(2)(b) was charged with § 87(2)(b). Though the entries were made at 11:45 PM, the arrest time for both of them is written as 12:00 AM. Both of them were listed as being in good/normal condition. The entries indicate that force was used in effecting their arrests. They were both taken to the 69<sup>th</sup> Precinct at 3:55 AM, and then to Brooklyn Central Booking at 5:40 AM. The entry at 5:00 AM indicates that Officer Arroyo and Officer Deonarinesingh requested nearly five hours of overtime each regarding line-of-duty injuries (encl. 40a-c).

***IAB document requests to the 69<sup>th</sup> Precinct***

A document request submitted to the 69<sup>th</sup> Precinct on March 21, 2007, requesting summonses issued to § 87(2)(b) was unfulfilled because the command was unable to locate the summonses (encl. 50e).

***December 20, 2006***

***SPRINT***

On December 20, 2006, at 4:10 PM, an officer reported needing assistance (10-13) in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn. At 4:14 PM, the operator § 87(2)(b) stated that one officer in a van had turned down § 87(2)(b) while a second officer was on foot chasing a black male wearing a camouflage jacket and blue jeans and carrying unknown weapons. At 4:20 PM, a female caller, who identified herself as a member of the NYPD, stated that an officer had one suspect but was still chasing the other. At 4:23 PM, the first patrol sergeant of the 69<sup>th</sup> Precinct verified that two people were under arrest as of 4:17 PM. At 4:25 PM, EMS (Emergency Medical Service) was requested to respond to the 69<sup>th</sup> Precinct stationhouse. At 4:29 PM, the 69<sup>th</sup> Precinct "base" requested EMS to an unspecified location for an injured prisoner. EMS arrived on scene at 4:33 PM. At 5:02 PM, EMS and members of the 69<sup>th</sup> SNEU escorted one male to § 87(2)(b) (41a-f).

***§ 87(2)(b)'s arrest photograph***

No injuries are visible on § 87(2)(b) in his arrest photograph taken on December 20, 2006 (encl. 42).



*Booking Arraignment Disposition System search*

The BADS records of arrests in the 69<sup>th</sup> Precinct on December 20, 2006, indicates that both § 87(2)(b) and § 87(2)(b) were arrested on § 87(2)(b). They were the only two people arrested in that vicinity on this date (encl. 43).

*Roll call, 69<sup>th</sup> Precinct, tour 3, on December 20, 2006*

Officer Deonarinesingh and Officer Smith were assigned together to vehicle number 5854, and they were the only two officers assigned to SNEU operations (encl. 44a-g).

**Subject officer CCRB histories**

Officer Troy Luis has been a member of the NYPD for two years and has no prior substantiated allegations at the CCRB (encl. 2a).

Officer Antonion Arroyo has been a member of the NYPD for three years and has no prior substantiated allegations at the CCRB (encl. 2b).

Officer Jason Deonarinesingh has been a member of the NYPD for two years and has no prior substantiated allegations at the CCRB (encl. 2c).

Officer Patrick Smith has been a member of the NYPD for five years. He has two prior substantiated allegations at the CCRB, both in case number 200512451, for abuse of authority and discourtesy (encl. 2e-f). The CCRB recommended charges regarding both allegations. The NYPD declined to prosecute the allegation of abuse of authority.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

**Civil court records**

On November 8, 2007, § 87(2)(b) of the NYC Office of the Comptroller confirmed that they do not possess a Notice of Claim regarding these incidents (encl. 47).

**Complainant and victim CCRB histories**

This is § 87(2)(b)'s only complaint with the CCRB (encl. 3a).

§ 87(2)(b) has since filed complaint number § 87(2)(b)

## Conclusions and Recommendations

### officer identification and pleading

Officer Deonarinesingh was identified from the arrest paperwork he filed regarding § 87(2)(b)'s arrest on December 20, 2006. Sergeant Gonzalez and officers Luis, Blowe, Arroyo, Allua and Smith were identified as members of the 69<sup>th</sup> Precinct SNEU by the 69<sup>th</sup> Precinct roll call for September 17, 2006. Officer Doll was identified from the arrest paperwork he filed regarding § 87(2)(b)'s and § 87(2)(b)'s arrests on September 18, 2006. Officer Hernandez was identified from the roll call for the 69<sup>th</sup> Precinct on September 18, 2006.

### September 17 and 18, 2006

§ 87(2)(b) described the officer who approached him, searched him and used physical force against him in the vicinity of § 87(2)(b) in Brooklyn as a black male in uniform, 6'1" tall, stocky build, black, short hair and wearing glasses. He also stated that he thought the officer's name was "Lui," which he read from the officer's shield. Of the officers assigned to the 69<sup>th</sup> Precinct SNEU during this incident, only Officer Luis and Officer Blowe are black males. Officer Luis is two inches shorter and fifty pounds heavier than Officer Blowe, giving him a stockier build than Officer Blowe. Of the officers assigned to the 69<sup>th</sup> Precinct SNEU, Officer Luis' name is closest to the name provided by § 87(2)(b) § 87(2)(g)

§ 87(2)(b) was able to describe three of the officers who used physical force against him outside the 69<sup>th</sup> Precinct stationhouse. He said that the same officer who first approached and searched him at § 87(2)(b) and then threw him against a van also used physical force against him at the 69<sup>th</sup> Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) described the first officer who used offensive language toward him outside the stationhouse as a Hispanic male in uniform with light-brown skin, 5'6" tall, 200 pounds, with low-cut black hair. This description is consistent with Officer Arroyo's pedigree information, which shows that he is a Hispanic male, § 87(2)(b), with black hair and brown eyes. Officer Arroyo filed AIDED paperwork regarding injuries he sustained while effecting § 87(2)(b)'s arrest in front of the stationhouse. § 87(2)(g)

§ 87(2)(b) said that the same officer who used offensive language toward him outside the 69<sup>th</sup> Precinct stationhouse also used physical force against him. § 87(2)(g)

§ 87(2)(b) described the third officer who used physical force against him outside the 69<sup>th</sup> Precinct stationhouse as a black or Hispanic male in uniform, 5'6" tall, medium build, with black, curly hair. This description is somewhat consistent with Officer Deonarinesingh's pedigree information, which shows that he is a black male, § 87(2)(b), with black, curly hair and brown eyes. This investigation determined that Officer Deonarinesingh was injured while effecting § 87(2)(b)'s arrest outside the 69<sup>th</sup> Precinct stationhouse. § 87(2)(g)

§ 87(2)(b) alleged that approximately ten officers whom he could not describe used physical force against him outside the 69<sup>th</sup> Precinct stationhouse. § 87(2)(b) was arrested at the same time as the tours were changing at the 69<sup>th</sup> Precinct, which meant that there were many officers in front of the stationhouse. § 87(2)(g)

§ 87(2)(b) described the officer who used offensive language toward him and physical force against him inside the 69<sup>th</sup> Precinct stationhouse as a white male, 5'7" tall, 175 pounds, approximately thirty-six years old, with black hair. He also stated that this officer was the same officer who operated the marked van during the incident on December 20, 2006. § 87(2)(g)

**December 20, 2006**

§ 87(2)(b) stated that the driver of the marked van used physical force against § 87(2)(b). As shown above, this investigation determined that Officer Smith operated the marked van. Therefore, allegation I is pled against Officer Smith.

§ 87(2)(b) stated that the passenger in the marked van drew his gun while chasing § 87(2)(b) and struck § 87(2)(b) in the face with his asp. According to the roll call for December 20, 2006, Officer Deonarinesingh was the only other officer assigned to the marked van. § 87(2)(g) . Officer Deonarinesingh denied using his asp, but he acknowledged hitting § 87(2)(b) with his fist. § 87(2)(g)

**Allegations not pleaded**

§ 87(2)(b) alleged that he and § 87(2)(b) were searched by officers at § 87(2)(b) in Brooklyn. § 87(2)(b) did not mention this allegation, and this investigation was unable to obtain a verified statement regarding this allegation. § 87(2)(g)

**Assessment of evidence**

**September 17 and 18, 2006**

It is undisputed that Officer Luis searched § 87(2)(b) in front of § 87(2)(b) in Brooklyn. All parties agree that Sergeant Gonzalez threatened to arrest § 87(2)(b) in front of the 69<sup>th</sup> Precinct stationhouse. All parties also agree that Officer Deonarinesingh used physical force while effecting § 87(2)(b)'s arrest in front of the stationhouse.

§ 87(2)(g)

[REDACTED]

*December 20, 2006*

It is undisputed that Officer Smith arrested § 87(2)(b). It is also undisputed that Officer Deonarinesingh chased § 87(2)(b), struck him, and apprehended him.

§ 87(2)(g)

She stated both that an unidentified individual named § 87(2)(b) was with § 87(2)(b) and § 87(2)(b) and that § 87(2)(b) was not present. She also stated once that Officer Smith threw § 87(2)(b) against the van and that Officer Smith threw § 87(2)(b) against the van. During her phone statement, § 87(2)(b) stated that § 87(2)(b) told her that § 87(2)(b) and § 87(2)(b) were hiding in an alley when the officers arrived. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that he saw Officer Smith bang § 87(2)(b) against the van more than five times, § 87(2)(g)

§ 87(2)(g)

Officer Deonarinesingh denied drawing his gun. Officer Deonarinesingh stated that he chased § 87(2)(b) until § 87(2)(b) turned and drew a knife. Officer Deonarinesingh acknowledged punching § 87(2)(b) in the head with his hand; he stated that he did not have time to draw his asp. An unidentified officer told the EMS personnel that § 87(2)(b) fell and hit his head, § 87(2)(b)

**Allegation A: Abuse – On September 17, 2006, in the vicinity of § 87(2)(b) . in Brooklyn, Officer Troy Luis searched § 87(2)(b)**

§ 87(2)(g). According to *New York Search and Seizure*, an officer may conduct a search incident to a lawful arrest for the safety of the arresting officer and to seize and preserve weapons or evidence (encl. 1a). § 87(2)(g) it is recommended that allegation A be closed as “exonerated.”

**Allegation B: Force – On September 17 and 18, 2006, at § 87(2)(b) in Brooklyn, and at the 69<sup>th</sup> Precinct stationhouse, Officer Troy Luis used physical force against § 87(2)(b)**

§ 87(2)(g) § 87(2)(b) alleged that Officer Luis grabbed his shirt and threw him against a van. § 87(2)(b) corroborated § 87(2)(b)'s statement, but he did not recall when this happened during the interaction in front of § 87(2)(b). Officers Luis and Blowe denied that § 87(2)(b) was thrown against a van. According to Officer Blowe, he had to assist Officer Luis when § 87(2)(b) resisted being handcuffed, which was not stated by Officer Luis. According to Officer Luis, § 87(2)(b) was placed against a vehicle when he was handcuffed. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) According to § 87(2)(b) Officer Luis was one of the officers who tackled and punched him when he was arrested in front of the stationhouse. Officer Luis denied being involved in § 87(2)(b)'s second arrest, as he was inside the stationhouse at the time. None of the witnesses or the documentary evidence was able to corroborate either § 87(2)(b)'s or Officer Luis' statements.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation B be “unsubstantiated.”

**Allegation C: Offensive Language – On September 18, 2006, in the vicinity of the 69<sup>th</sup> Precinct stationhouse, Officer Antonio Arroyo made remarks to § 87(2)(b) based upon race.**

§ 87(2)(g) § 87(2)(b) also alleged that Officer Arroyo referred to him as a “nigger” and wanted to fight him. § 87(2)(b) did not corroborate § 87(2)(b)'s statement, and Officer Arroyo denied it. The other witnesses present did not recall hearing Officer Arroyo use any offensive language. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation C be “unsubstantiated.”

**Allegation D: Force – On September 18, 2006, in the vicinity of the 69<sup>th</sup> Precinct stationhouse, Officer Antonio Arroyo used physical force against § 87(2)(b)**

§ 87(2)(g) According to § 87(2)(b) Officer Arroyo was one of the officers who tackled and punched him. He also said that Officer Arroyo injured his own hand, showed the injury to § 87(2)(b) and said that § 87(2)(b) bit him. § 87(2)(b)

Officer Arroyo denied having physical interaction with § 87(2)(b). According to him, § 87(2)(b) and Officer Hernandez, Officer Arroyo was prevented from reaching § 87(2)(b) by § 87(2)(b) who injured him by scratching his chest. Officer Arroyo noted in his memo book that he was bitten on the right pinky by a “male perp.” § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation D be “unsubstantiated.”

**Allegation E: Force – On September 18, 2006, in the vicinity of the 69<sup>th</sup> Precinct stationhouse, Officer Jason Deonarinesingh used physical force against § 87(2)(b)**

According to § 87(2)(b) Officer Deonarinesingh was one of the officers who used physical force against him in front of the stationhouse. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) It is therefore recommended that allegation E be closed as “unsubstantiated.”

**Allegation F: Force – On September 18, 2006, in the vicinity of the 69<sup>th</sup> Precinct stationhouse, officers used physical force against § 87(2)(b)**

Neither § 87(2)(b) nor § 87(2)(b) was unable to describe the unidentified officers who used physical force against him in front of the 69<sup>th</sup> Precinct stationhouse. § 87(2)(g) it is therefore recommended that allegation F be closed as “officer(s) unidentified.”

**Allegation G: Offensive Language – On September 18, 2006, in the vicinity of the 69<sup>th</sup> Precinct stationhouse, Officer Patrick Smith made remarks to § 87(2)(b) based upon race.**

**Allegation H: Force – On September 18, 2006, in the vicinity of the 69<sup>th</sup> precinct stationhouse, Officer Patrick Smith used physical force against § 87(2)(b)**

§ 87(2)(g) According to § 87(2)(b) Officer Smith referred to him as a “nigger” and slapped him inside the stationhouse, and this was witnessed by Officer Arroyo. Officer Smith denied both allegations. Officer Arroyo did not recall observing either of these allegations. He was removed to the hospital after being injured effecting § 87(2)(b)s and § 87(2)(b)s arrests. § 87(2)(b) did not state the time when allegations H and I occurred, § 87(2)(g)

It is therefore recommended that allegations G and H be “unsubstantiated.”

**Allegation I: Force – On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Patrick Smith used physical force against § 87(2)(b)**

§ 87(2)(g) § 87(2)(b) alleged that she saw Officer Smith throw § 87(2)(b) twice against the police van; however, she also stated that Officer Smith threw § 87(2)(b) against the van, and not § 87(2)(b) § 87(2)(b) said that he saw Officer Smith throw § 87(2)(b) against the van more than five times before handcuffing § 87(2)(b) § 87(2)(b) was running from Officer Deonarinesingh when § 87(2)(b) was allegedly thrown against the van. Officer Deonarinesingh stated that he did not see Officer Smith apprehend § 87(2)(b) because he was chasing § 87(2)(b) According to Officer Smith, § 87(2)(b) was compliant, and no force was used to or necessary when effecting his arrest. § 87(2)(b) did not cooperate with this investigation, § 87(2)(g)

It is therefore recommended that allegation I be closed as “victim uncooperative.”

**Allegation J: Abuse – On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh drew his gun.**

§ 87(2)(b) alleged that Officer Deonarinesingh drew his gun while chasing § 87(2)(b) § 87(2)(g)

It is therefore recommended that allegation J be closed as “unsubstantiated.”

**Allegation K: Force - On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh struck § 87(2)(b) with an asp.**

§ 87(2)(g) § 87(2)(b) also alleged that Officer Deonarinesingh struck § 87(2)(b) in the face with his asp. According to Officer Deonarinesingh, he hit § 87(2)(b) with his fist when § 87(2)(b) turned and drew a knife; Officer Deonarinesingh stated that he did not have time to draw his asp. § 87(2)(b) denied having a knife. § 87(2)(g)

It is therefore recommended that allegation K be “unfounded.”

**Allegation L: Force – On December 20, 2006, in the vicinity of § 87(2)(b) and § 87(2)(b) in Brooklyn, Officer Jason Deonarinesingh used physical force against § 87(2)(b)**

§ 87(2)(g)

According to NYPD Patrol Guide procedure 203-11, “Only that amount of force necessary to overcome resistance will be used to effect an arrest” (encl. 1b-c). In *PD v. Basandella*, in which an officer punched a female who was coming at him flailing her arms and cursing, Deputy Commissioner of Trials Simone P. Gourdine determined that the officer swung in self defense, and that “it would not be unreasonable in such circumstances to do so” (encl. 1d-e).

§ 87(2)(g)

it is recommended that allegation L be “exonerated.”

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: